

ORDER SHEET
IN THE LAHORE HIGH COURT MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P.No.15389/2019

Faiz ur Rehman Alvi Versus ADJ, Burewala etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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11.10.2019 Ch. Shahid Mehmood Buttar, Advocate for the
petitioner.

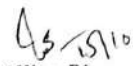
Through this constitution petition, the petitioner has called in question order dated 02.07.2018 passed by the learned Civil Judge, Burewala, whereby in a suit for specific performance of oral agreement dated 03.03.2017 filed by him, his application for interim injunction under Order 39 Rule 1 & 2 CPC was dismissed and also judgment dated 08.02.2019 passed by learned Additional District Judge, Burewala whereby his appeal against the said order was also dismissed. Learned counsel submits that the petitioner is in possession of the suit property and has prima facie arguable case in his favour and both the afore-referred order and judgment are against the facts and law on the subject and also do not properly appreciate the real controversy in issue, consequently these are liable to be set aside and application of the petitioner for interim injunction merits to be allowed in his favour. It is further contended by learned counsel for the petitioner that the petitioner was put in possession of the suit property by the

respondents on the basis of an oral agreement dated 03.03.2017 in consideration of Rs.3,00,000/- out of which an amount of Rs.2,00,000/- was paid by the petitioner at the time of agreement to the respondents while the balance amount of Rs.1,00,000/- was promised to be paid within two months. He adds that the petitioner deposited the balance consideration amount of Rs.1,00,000/- in the Court and in this way he has paid the entire consideration amount of the suit property, therefore, learned Courts below were not justified to dismiss his application for interim injunction.

2. It is observed that original owners respondents No.3 to 5 denied the petitioner's claim while respondent No.6 has also claimed to be the owner of said property on the basis of agreement to sell dated 11.03.2017 and consequent mutation No.175 dated 16.03.2017. The petitioner is yet to prove the alleged oral agreement in his favour by producing evidence and it is settled by now that where some facts to be established require recording of evidence prima facie case cannot be presumed especially when third party also claims right adverse to his claim and also claims to be the owner in the same property supported through entry in record. Consequently first ingredient of prima facie case for grant of interim injunction is missing in this case. Besides the petitioner has failed to show that balance of convenience lies in his favour and as to how he would suffer irreparable loss if

temporary injunction is not granted in his favour. So far as his claim to be in possession of the suit property is concerned, merely being in possession of the property does not confer any right to a party for grant of interim relief in his favour. Reliance is placed on case "*Muhammad Ali v. Mehnga Khan*" reported as **2004 SCMR 1111**. The petitioner has failed to point out prima facie case, irreparable loss and balance of convenience in his favour to entitle himself for grant of temporary injunction, hence was not entitled to such relief at this stage.

3. For what has been discussed above the petitioner has failed to point out any jurisdictional defect, misreading and non-reading and erroneous exercise of jurisdiction by the learned Courts below while passing the impugned order and judgment. Therefore, learned Courts below were justified in concurrently dismissing his application for grant of temporary injunction and their well founded decisions warrant no interference of this Court. Hence, this writ petition being devoid of merits is **dismissed**.


Waqar

(Muzamil Akhtar Shabir)
Judge